2. After the 42nd Constitutional Amendment (1976), ministerial advice has been made binding on the President, but no such provision has been made with respect to the governor.

The Constitution makes it clear that if any question arises whether a matter falls within the governor's discretion or not, the decision of the governor is final and the validity of anything done by him/her cannot be called in question on the ground that he/she ought or ought not to have acted in his/her discretion. The governor has constitutional discretion in the following cases:

1. Reservation of a bill for the consideration of the President.
2. Recommendation for the imposition of the President's Rule in the state.
3. While exercising his/her functions as the administrator of an adjoining union territory (in case of additional charge).
4. Determining the amount payable by the Government of Assam, Meghalaya, Tripura and Mizoram to an autonomous Tribal District Council as royalty accruing from licenses for mineral exploration[6].

In addition to the above constitutional discretion (i.e., the express discretion mentioned in the Constitution), the governor, like the President, also has situational discretion (i.e., the hidden discretion derived from the exigencies of a prevailing political situation) in the following cases:

1. Appointment of chief minister when no party has a clear-cut majority in the state legislative assembly or when the chief minister in office dies suddenly and there is no obvious successor.
2. Dismissal of the council of ministers when it cannot prove the confidence of the state legislative assembly.
3. Dissolution of the state legislative assembly if the council of ministers has lost its majority.

Moreover, the governor has certain special responsibilities to discharge according to the directions issued by the President. In this regard, the governor, though has to consult the council of ministers led by the chief minister, acts finally in his/her discretion. They are as follows:

1. Maharashtra—Establishment of separate development boards for Vidarbha and Marathwada.
2. Gujarat—Establishment of separate development boards for Saurashtra and Kutch.
3. Nagaland—With respect to law and order in the state for so long as the internal disturbance in the Naga Hills–Tuensang Area continues.
4. Assam—With respect to the administration of tribal areas.
5. Manipur—Regarding the administration of the hill areas in the state.
6. Sikkim—For peace and for ensuring social and economic advancement of the different sections of the population.
7. Arunachal Pradesh—With respect to law and order in the state.
8. Karnataka—Establishment of a separate development board for Hyderabad-Karnataka region[7].